

HOUSE BILL 1640

By Lamberth

AN ACT to amend Tennessee Code Annotated, Title 10,
Chapter 7, Part 5, relative to confidentiality of
department of safety records.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 10-7-504(a)(2)(A), is amended by adding the language "the office of homeland security," after the language "All investigative records of the Tennessee bureau of investigation,".

SECTION 2. Tennessee Code Annotated, Section 10-7-504(a)(2), is amended by adding the following new subdivision:

() The following records of the office of homeland security must be treated as confidential and are not open to inspection by members of the public:

(i) All records possessed by the office describing protected critical infrastructure submitted or created for protected use regarding the security of critical infrastructure or protected systems, analyses, warnings, interdependency studies, recovery, reconstitution, or for other appropriate purposes;

(ii) All records relating to the identification, analysis, prevention, preemption, disruption, response, maintenance, and defense against and mitigation of terrorist or criminal threats and acts against Tennessee's critical infrastructure and the homeland; and

(iii) All records that are designated by the commissioner of safety or the commissioner's designee as describing or relating to protected critical infrastructure.

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it.